ORDINANCE 2025 - 25

AN ORDINANCE RELATING TO SANTA ROSA COUNTY, FLORIDA; AMENDING CERTAIN PROVISONS OF ORDINANCE 23-15 AS AMENDED; ALSO KNOWN AS THE SANTA ROSA COUNTY LAND DEVELOPMENT CODE AMENDING 3.04.05 EROSION AND SEDIMENTATION CONTROL; AMENDING 4.02.12 TERMINATION, EXTENSION AND TRANSFERABILITY; AMENDING 4.03.06 CONSTRUCTION PLANS – MINIMUM REQUIREMENTS; AMENDING 4.04.01 DRAINAGE AND STORMWATER MANAGEMENT PLAN; AMENDING 4.07.04 LANDSCAPE BUFFERS; AMENDING 4.08.00 LAND CLEARING AND EXCEPTIONS; ADDING CONSERVATION COMMUNITIES; PROVIDING FOR CODIFICATION; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

BE IT ORDAINED BY THE BOARD OF COUNTY COMMISSIONERS OF SANTA ROSA COUNTY, FLORIDA:

SECTION 1. The Santa Rosa County Board of County Commissioners amends Ordinance 23-15 as amended, also known as the Santa Rosa County Land Development Code, described in Exhibit A attached. Provisions repealed are shown in strikethrough and provisions added are shown in bold underline.

SECTION 2. The Santa Rosa County Board of County Commissioners hereby finds that these amendments are not burdensome or restrictive and do not establish burdensome or restrictive procedures.

SECTION 3. EFFECTIVE DATE. A copy of this Ordinance shall be filed in the office of the Secretary of State within ten (10) days of enactment. The ordinance amendments shall be effective and shall take effect upon filing with the Department of State.

PASSED AND ADOPTED by a vote of 5 yeas, Ø nays, and Ø absent for the Board of County Commissioners of Santa Rosa County, Florida, on the 10th day of November 2025.

BOARD OF COUNTY COMMISSIONERS
SANTA ROSA COUNTY, FLORIDA

By: _____
Kerry Smith, Chairman

ATTEST:

_____
Jason D. English, Clerk of Court

I, Jason English, Clerk of Court of Santa Rosa County, Florida, do hereby certify that the same was adopted and filed of record and sent electronically to the Secretary of the State of Florida, on this 14th day of NOVEMBER, 2025.

_____
Jason D. English, Clerk of Court

EXHIBIT A

Table 2.05.01.a: Setback and Height Standards in Base Zoning Districts

Setbacks and Height Limits	AG-RR	AG1	AG2
Front Setbacks	~~25'~~ 45'	~~25'~~ 45'	~~25'~~ 45'
Front Setback On a Residential Collector Street	~~35'~~ 45'	~~35'~~ 45'	~~35'~~ 45'

Table 2.06.01.a: Minimum Lot Sizes and Widths for Residential Zoning Districts

Minimum Lot Sizes and Widths	AG-RR	AG1	AG2
Minimum Lot Width	~~70' at ROW~~ 100' at ROW	~~70' at ROW~~ 100' at ROW	~~70' at ROW~~ 100' at ROW

3.04.05 Erosion and Sedimentation Control

A.5. At all times during and after development, cleared areas shall be stabilized. Final stabilization measures shall be in place within fourteen (14) days of final **grading in accordance with the Florida Department of Environmental Protection's *Stormwater Erosion and Sedimentation Control Inspectors Manual*, latest edition.**

A.6. All control measures shall comply with the management practices contained in the Florida Department of Environmental Protection's ~~"Erosion and Sediment Control Designer and Reviewers Manual"~~ ***Stormwater Erosion and Sedimentation Control Inspectors Manual,*** latest edition.

A.8. Construction sites are to minimize the extent of the area exposed at one time, the disturbance of steep slopes, and the duration of exposure during construction. This includes avoiding clearing, grubbing, and grading the entirety of the site at once. The permittee shall submit a phased construction schedule prior to the start of construction which includes the description of construction techniques, sequencing, and equipment. ~~Please refer to Subsection 11.1.2 of ERP Applicant's Handbook Volume I and Part 3 of Section E of the ERP Application Form 62-330.060(1) for more information.~~ **The provisions of the ERP Applicant's Handbook, latest edition, apply under the articles of this code.**

4.02.12 Termination, Extension and Transferability

Site plan approval shall terminate ~~five (5)~~ **two (2)** years after being granted if no building permit has been issued by the Building Department with ~~a five (5) year~~ **the possibility of an** extension upon request by the developer, **property owner,** or engineer of record **and upon approval of the Board of County Commissioners**, provided construction has commenced. Site plan approval shall also automatically terminate upon revocation or expiration of a building permit issued by the Building Official, or upon revocation or expiration of a permit issued by the ~~Environmental Manager~~ **Planning Department**. In the event the property receiving site plan approval is transferred, the site plan approval for an approved site plan shall be transferable.
~~Site plan approval for all PIT activity shall terminate five (5) years after being granted if no permit has been granted by the Environmental Department. Site plan approval shall also automatically terminate upon revocation or expiration of a permit issued by the Environmental Department. In the event the property receiving site plan approval is transferred, the site plan approval for an approved site plan shall be transferable.~~

4.03.06 Construction Plans – Minimum Requirements

F. Clearing - A complete clearing / grubbing plan showing the limits of the clearing that will be included as part of the installation of the infrastructure. The plan shall also include any lots that will be cleared as part of the construction. A tree survey for heritage and champion trees, tree identification table and mitigation plan are required per LDC Section 4.07.05. The site layout must be shown on the tree survey. ***The clearing shall meet the requirements in section 4.08.01.C***

G. Erosion Control Plan – Provide an erosion control plan that specifies in detail the erosion and sedimentation control measures to be used during all phases of construction. These plans shall be in accordance with the FDEP's "~~*Erosion & Sediment Control Designer & Reviewers Manual,*~~" ***"Florida Stormwater, Erosion, and Sedimentation Control Inspector Manual"*** latest edition. ~~*At a minimum the plan shall include the type, detail and location of the control measure used. Stockpile areas shall be identified and proper erosion protection shall be installed.*~~ ***Refer to section 3.04.05 for the Erosion Control Plan requirements.***

4.04.01 Drainage and Stormwater Management Plan

I. Stormwater Design Requirements

3. Stormwater Treatment Pond Design Requirements:

i. All treatment ponds intended for public ownership shall be fenced in accordance with Santa Rosa County Fence standards with adequate access provided for County maintenance. **Fencing shall not be required under either of the following circumstances, provided there is adequate access for County maintenance:**

a. **The pond has less than two feet of water.**

b. **If the pond can impound more than two feet of water, then the side slopes shall not be steeper than 4:1 extending to a depth of 2-feet below the water elevation.**

4.07.04 Landscape Buffers

D. Use of Landscaped Buffers

2. Stormwater Retention/Detention Facilities – Stormwater retention/detention facilities ~~may~~ shall not encroach into landscaped buffers ~~a maximum of 40% of buffer width, when all planting requirements of this section are met, and the visual screen provided by the landscaped buffer will be fully achieved~~.
3. **Landscape buffers between incompatible uses shall not be cleared during site development/construction unless approved by variance.**

4.08.00 LAND CLEARING AND EXCEPTIONS

4.08.01 Land Clearing ~~of an Undeveloped Lot~~ is prohibited except:

No minor or major land clearing of any property subject to these regulations shall occur without the prior approval of Santa Rosa County unless exempt under the terms of this code. In addition to all other parcels, these regulations apply to the clearing of platted rights-of-way.

Land clearing exempted under the terms of this code shall be subject to the requirements of 3.04.05 Erosion and Sediment Control.

To the extent reasonably necessary to accomplish the improvement or development of land authorized by a valid Building Permit or Development Order

A. Minor Land Clearing: The Planning Director or his/her designee shall issue a minor land clearing permit for undeveloped properties, prior to the approval of a site plan or subdivision plat, for the purpose of minor land clearing under the following conditions:
   1. The applicant shall submit a non-engineered site plan or sketch showing the following:
      a. The property boundary, with dimensions, and location of existing improvements.
      b. The general location of any protected trees and the graphical indication of the area to be cleared and areas to remain undisturbed. No minor land clearing will be allowed within twenty (20) feet of an incompatible land use.
      c. Size of the property, shown in square feet and/or acres; and
      d. The type and location of erosion control measures. Erosion control measures are required and must be maintained until such time that the lot is developed, or a healthy, vegetative cover is in place to prevent ANY surface erosion. ***Installation***

details shall be included for all BMP's being used.

e. ***Note the location of flood zones or wetland and wetland buffers if applicable.***

2. A minor land clearing permit is not required for the following:
   a. Agriculture or silviculture activity in an agriculture zoning district that have obtained an Agriculture Silviculture designation from the Property Appraiser or silviculture activity that has a Florida Division of Forestry Management Plan.
   b. Lots or parcels of land for the construction of one single family or duplex structure provided a building permit has been issued.
   c. Property maintenance activities such as bush hogging, mowing or tree trimming.
   d. Property with a single-family residence or duplex in existence.
   e. For any minor land clearing located within any of the Agriculture zoning districts.
3. A minor land clearing permit does not authorize major land clearing, or soil disturbing as defined herein.
4. A minor land clearing permit is required for canal front properties and waterfront properties.
5. No clearing, grading, excavating, filling, or other disturbance of the natural terrain shall occur until County-approved erosion and sedimentation control measures have been installed, except those operations needed to implement these measures. All erosion and sedimentation control measures shall be maintained throughout the length of construction activity.

B. Major Land Clearing – The Planning Director or his/her designee shall issue a major land clearing permit for a residential lot prior to a valid residential building permit being issued, prior to the approval of a subdivision plat construction documents, for the purpose of major land clearing under the following conditions:

1. ***Any major land disturbance over one acre shall prepare a SWPPP and obtain a NPDES permit from FDEP. The permittee shall provide a copy of the NPDES NOI prior to commencing clearing operations***
2. For all residential sites up to five (acres) in size, the applicant shall submit site plan or sketch showing the following:
   a. The property boundary, with dimensions, and location of existing improvements.
   b. The general location of any protected Heritage trees and the graphical indication of the area to be cleared and areas to remain undisturbed. A valid reasoning as outlined in section 4.07.05.A must be provided for all Heritage trees that are proposed to be removed.
   c. All vegetation must remain within the minimum buffer requirements of a common boundary of an incompatible land use.

d. All wetland, ***wetland buffers,*** and/or floodplain areas must be identified.

e. Size of the property, shown in square feet and/or acres; and

The type and location of erosion control measures. No clearing, grading, ~~*excavating, filling,*~~ or other disturbance of the natural terrain shall occur until County-approved erosion and sedimentation control measures have been installed, except those operations needed to implement these measures. All erosion and sedimentation control measures shall be maintained throughout the length of construction activity. ~~*For lots exceeding one (1) acre in size a SWPPP permit must accompany the application*~~ *Note:* Excavating and/or filling shall not be allowed as part of a land clearing permit unless required for sediment basins or installation of BMP's)

3. For all sites greater than five (5) acres in size, the permit shall also include:
   a. A sediment basin of 3,600 CF of storage area per acre is required along with other appropriate sediment retention measures mentioned above. These will be sited on their survey/aerial. Where conditions dictate, smaller basins totaling the required storage may be situated on the site appropriately. ***The sediment basin shall be installed in accordance with the FDEP Florida Stormwater Erosion and Sedimentation Control Inspectors Manual.***
   b. This permit will not relieve the applicant for applicable state and federal permit requirements.
4. A major land clearing permit is not required for the following:
   a. Agriculture silviculture activity in an agriculture zoning district or silviculture activity that has a Florida Division of Forestry Management Plan not required to obtain a NPDES (National Pollution Discharge Elimination System) Permit for the activity being done.
   b. Property maintenance activities such as bush hogging, mowing or tree trimming.
   c. All parcels for which a single family residence has been built, or for which a permit has been obtained, is active.
   d. All parcels for which an approved development order has been obtained.
   e. For subdivisions going through the platting process a wetland delineation line would be required when submitted construction plans.
   f. For any major land clearing activity located within any Agriculture zoning district.
5. All major land clearing activities for commercial or multifamily developments are not eligible for a major land clearing permit and must obtain an approved site plan development order for any major land clearing activity.

C. Land Clearing Requirements for which a Development Order or Land Clearing permit has been given.
   1. The developer shall limit all land clearing activities to the area approved within the development order.
   2. Clearing activity one (1) acre or greater requires an NPDES permit and a SWPPP. See

requirements listed in Section 3.04.05 Erosion and Sediment Control.

3. ***Provide clearing limits and construction phasing plan with the following minimum requirements:***
    a. ***Description of construction sequencing. (The intent of the sequencing description is to provide a general understanding of the order in which project elements shall be constructed; not a detailed timeline of elements for which the developer cannot control. For example, the plan need not distinguish between specific utilities but shall provide an estimated timeline of "utilities installation" in respect to other elements in the sequence of construction.)***
    b. ***Provide a phasing plan that limits any clearing of the site until the stormwater pond(s) or sediment basin(s) is established.***
    c. ***Clearing limits per phase will be limited to the drainage basins associated with each stormwater pond.***
    d. ***Allowance to clear a 20-foot wide path to the pond site and associated clearing for erosion control will be allowed but must be shown on the clearing plan. Such 20-foot wide allowance is outside of other infrastructure improvements noted on the construction plans.***
    e. ***Clearing for stockpile areas for pond excavation will be allowed under the following conditions***
        I. ***Clearing adjacent to stormwater ponds only or in designated stockpile areas as identified on construction plans.***
        II. ***One (1) acre of Land may be cleared for every 30,000 CY of dirt excavated from the stormwater pond***
        III. ***Calculations for stockpile area shall be provided during plan review***

    f. ***Clearing of right-of-way for platted subdivisions shall be limited to the following:***
        I. ***Where seasonal high groundwater elevations exceed 5 feet below existing ground elevations no clearing will be allowed beyond the required right-of-way limits.***
        II. ***Where seasonal high groundwater elevations are within 5 feet of existing ground elevations, clearing is permitted up to 25 feet beyond the required right-of-way or as otherwise justified for the engineering grading plan for the infrastructure improvements for the drainage feasibility.***

4. Before site disturbance occurs, perimeter controls, sediment traps, basins, and diversions ~~should~~ **shall** be in place to control runoff and capture sediments. Prioritize disturbed areas in the vicinity of waterbodies, wetlands, steep grades, long slopes, etc., for effective stabilization within seven days of disturbance. Graded areas that will not

be worked on ~~should~~ **shall** be seeded and mulched as required by NPDES permit, rather than waiting until all project grading is done. A well- planned and well- maintained construction entrance with stabilized construction roads can prevent offsite sedimentation, keep sediments off roads, minimize complaints from neighbors, and reduce future expenses and aggravation.

5. Protected trees shall be marked and protected during clearing activities.
6. Contractor shall control odor, dust, and noise during construction.

D. Land clearing of platted rights-of-way

1. **Prior to clearing of any platted rights of way, a permit shall be obtained pursuant to the terms of these regulations. Clearing of rights-of-way to access property owned by the applicant shall be approved if it complied with the design and performance requirements stated herein.**
2. **Clearing 20 feet in width or less shall meet County specifications and shall be located as approved by the County to account for wetlands, sediment control, and vegetation preservation.**
3. **Any clearing greater than 20 feet in width of a platted right-of-way that has been dedicated to the public shall be required to construct a roadway meeting County specifications and shall be located as approved by the County to account for wetlands, sediment control, and vegetation preservation.**
4. **The application shall also ensure they receive any and all applicable permits required by the state and federal level prior to clearing the right-of-way.**
5. **No County maintained right-of-way shall be altered, modified, damaged, or improved without the prior written approval of the County.**

4.03.13 Conservation Communities –

I. This provision is intended to permit a reduction in lot area and bulk regulations to minimize urban sprawl, provided there is no increase in the overall density of the development. This allows for development flexibility by reserving open space, park areas, and vegetative buffers through the subdivision of lands into residential and non-residential lots, which will not possess the required road frontage, lot size, or internal setbacks required by the Santa Rosa County Zoning Map and Santa Rosa County Future Land Use Map without exceeding the allowable density as provided by the Santa Rosa County Zoning Map and Santa Rosa County Future Land Use Map. If the two maps differ, the lesser density shall prevail.

1. **Conservation Communities are only permitted south of the Range line that follows Hwy 182 east to west across the County**

2. **A central water supply distribution system to serve the development shall be installed by the developer, per requirements referenced in 4.03.07.D.**

3. **The developer shall provide off-site improvements for the connection to the existing water supply system capable of delivering the required capacity for the subdivision. Capacity**

generated shall include all service connections and fire suppression flow per NFPA 1 Chapter 18

4. All residential lots less than 0.5 acres must have a Florida Department of Environmental Protection qualified domestic wastewater collection system.

5. A preliminary plat shall be filed which meets the requirements established by Section 4.03.00 in this Code and any supplemental requirements as may be imposed by the Santa Rosa County Engineering Department.

6. A final plat shall be submitted and follow the provisions of Section 4.03.00 of this Ordinance.

7. The perimeter setbacks of the project must maintain the minimum setbacks of the zoning district. In the event a Conservation Community abuts or is adjacent to a less dense residential subdivision the lots shall be clustered to the interior of the property or otherwise away from the less dense subdivision so that the area to be preserved acts as a buffer area between the two.

8. Conservation areas shall comprise a minimum of 25% of the project parcel, to include a minimum 25-foot wide existing, vegetative buffer around the project. Vegetative buffers and conservation areas shall be identified on the plat and dedicated to the public in perpetuity. Conservation areas may include walking trails, grassed open space, areas with wetlands that cannot be developed, and other recreational amenities. Common areas to the exterior of holding ponds (such as walking trails around holding ponds) may be included in the conservation area calculation, but the interior of a holding pond shall not count towards the calculation. No portion of the platted right-of-way shall be included as part of the conservation calculations.

9. The minimum side setbacks required for each lot within the project boundary shall be 10% of the lot width but no less than 4 feet. If the allowable setbacks under this section conflict with the Florida Building Code, the Building Code shall prevail. There shall be no front/rear setback requirements for interior lots.

There shall be no minimum lot size for the project provided the allowable density for the parcel shown on the Santa Rosa County Zoning Map and Santa Rosa County Future Land Use Map are not exceeded. If the two maps differ, the lesser density shall prevail.